



File No.: EXP202212151

- RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on November 11, 2022. The complaint is directed against B.B.B. (hereinafter, the respondent). The reasons on which the complaint is based are as follows:

“(…) that he is the owner of an industrial warehouse that borders an industrial warehouse leased by the respondent, with an easement of passage affecting the respondent's property, and that the respondent has installed a video surveillance system that, due to its location and orientation, is capable of capturing areas of the easement of passage”—file page No. 1—.

Along with the notification, a plan and images of the location of the cameras are provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent on November 16, 2022, for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was notified in due time and form as evidenced by the acknowledgment of receipt in the file.

THIRD: On January 17, 2023, a written response was received from the respondent regarding the facts subject to forwarding, providing a photograph of the installed cameras, stating that “they only affect the exterior installations of the establishment, including the parking lot,” with the reason for the installation being the protection of the commercial establishment and the vehicles of the customers who visit it.

FOURTH: On February 11, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FIFTH: On March 22, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR.

SIXTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and the respondent submitted a written statement in which, in summary, stated the following:

“the video surveillance system does not affect the free transit area of the parties. On the contrary, it is the complainant and one of his children who are continuously wandering around the parking area of the workshop, walking among the cars and taking photographs (…)

It is a constant harassment and intrusion of these people into the private facilities of the workshop (…)

which has been the subject of a new complaint, as well as tearing and breaking the Wi-Fi cable…

The installation of the cameras has been carried out by a company in the sector, as evidenced in the previous allegations.

Consequently, no infringement has been committed, and the complaint filed is another act, among many that the complainant suffers from the complainant, which have been the subject of complaints and are due to a harassing and invasive behavior in the business and life of the complainant (…)

SEVENTH: On March 29, 2023, the instructor of the procedure requested the collaboration of the State Security Forces and Corps in the area to verify the facts presented.

EIGHTH: On May 25, 2023, an Inspection Report from the Civil Guard—A Coruña Command was received, which, after visiting the site, confirmed the following:

“The front camera captures images of the front parking lot, a bit of the easement path, and part of a private property of the residence (...), and after interviewing the owner, he has authorized the capture of images of it.

The rear camera captures images of the parking lot and a bit of the easement path.

The right side camera captures images of the side of the workshop and a warehouse named ***COMPANY.1, and after interviewing the owner of the warehouse, who is C.C.C. ... he has authorized the capture of images of his land and warehouse.

“That outside the Warehouse, two informational signs are observed indicating that it is a video-surveilled area (...)”

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That outside the Warehouse, there are two (2) informational signs indicating that it is a video-surveillance area, one of them at the front and entrance area to the workshop and another on the left side where a servitude path runs.

NINTH: On 15/06/23, a is issued in which it is deemed appropriate to propose the Archiving of the procedure as it has not been established that the installed cameras affect private and/or public areas. Consulted the database of this Agency, it is recorded as "Notified" on 18/06/23.

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

First. The facts arise from the complaint dated 11/11/22 through which the following is conveyed:

“(...) that he is the owner of an industrial warehouse that borders an industrial warehouse of which the claimed party is a tenant, existing a servitude of passage that burdens the property of the claimed party and that the claimed party has installed a video surveillance system that, due to its location and orientation, is capable of capturing areas of the servitude of passage”—folio nº 1—.

Second. It is established that the main responsible party is B.B.B. with NIF ***NIF.1.

Third. It is established that there is an informational sign indicating that it is a without any irregularity observed in the informational signs.

Fourth. It is noted in the Act (Inspection) of the Civil Guard—Command A Coruña—that the cameras are intended for the protection of the warehouse where activities are carried out, limiting the capture to its property and a minimal part of the servitude path.

- The front camera captures images of the front parking of the warehouse, a bit of the path, and a part of private property (...) which has the authorization of the owner.

- The rear camera captures images of the parking and a bit of the servitude path.

Fifth. It is established that the responsible party of the system has the informed consent of the neighboring residents for obtaining images of their private property, an aspect confirmed by the acting force after an interview and telephone consultation with them.

LEGAL GROUNDS

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In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and

guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Before addressing the substance of the matter, it is appropriate to respond to the "complaint" presented by the claimed party regarding alleged defenselessness for not having been provided a copy of the Administrative File.

On this matter, it should be recalled that Article 53.1 "in fine" of Law 39/2015 (October 1) Rights of the interested party in the administrative procedure, establishes that "In addition to the other rights provided for in this Law, the interested parties in an administrative procedure have the following rights: "Likewise, they will also have the right to access and obtain a copy of the documents contained in the aforementioned procedures."

Therefore, a request should be made for a copy of the documentation deemed necessary in the interest of exercising their right to defense, without this Agency having limited any rights as there is no record of a request to that effect, which leads to the dismissal of their initial claim of infringement of any rights, much less the free exercise of the right to defense (art. 24.2 CE).

By means of the Start Agreement, this body reminds that it is limited to conveying simple facts with mere appearance of administrative infringement, without affecting their right to the presumption of innocence or the free use of the means of evidence admitted in law.

The aforementioned regulations, specifically Law 19/2013, December 9, on transparency, access to public information, and good governance, is applicable to the documentation associated with completed procedures, while the current sanctioning procedure is not a formally concluded procedure, but is currently in processing.

III

In this case, the complaint dated 11/11/22 is examined, through which the presence of a video surveillance camera in the servitude area of transit, by the tenant of an adjacent industrial warehouse, is considered.

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random that could affect their personal data as they are oriented towards a free transit zone.

The claiming party provides a situational plan, as well as photographs of all the cameras that have been installed by the responding party, who does not deny being responsible for them for reasons of external security and parking.

Upon examining the initial allegations of the respondent, it is considered that they are insufficient to prove the legality of the system in question.

It is initially considered that the content of Article 5.1 letter c) of the GDPR is affected, which states: "Personal data shall be:

c) adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization');

It should be noted that individuals are responsible for ensuring that the installed systems comply with current legislation, demonstrating that they meet all the requirements set forth by the applicable regulations.

The installation of such devices must have the mandatory informative sign, indicating the purposes and the responsible party for the processing of personal data, if applicable.

The installed cameras must be oriented towards private property, avoiding intimidation with such devices of nearby homes and/or public space.

Under no circumstances may the cameras record images of public roads or neighboring homes

(except for access to the property), as this would be the responsibility of the State Security Forces and Corps.

The installed cameras must be appropriate for the intended purpose, that is, protection of the main access to the residential area, avoiding any impact on the privacy of neighbors or nearby homes that are affected by the recording of images.

IV

On 23/05/23, an Act (Inspection) from the Civil Guard was received, which, upon being dispatched to the scene at the request of this agency, did not find the presence of any camera atop a pole, allowing the respondent to inspect the screen monitors.

Article 77, section 5 of Law 39/2015 (October 1) states:

“The documents formalized by officials recognized as authorities and in which, observing the corresponding legal requirements, the facts established by them are recorded shall serve as proof of these facts unless proven otherwise.”

It is evidenced that the owner of the system installation has the informed consent of the neighboring property owners, a fact verified by the acting force.

Furthermore, the acting force confirms the presence of an informative sign indicating that it is a video-monitored area, with no observed infringement or irregularity in this regard.

It is also noted that there are various conflicts between the parties, which are briefly mentioned in the Inspection Act dated 09/05/23.

Article 4 of Instruction 1/2006, dated November 8, from the Spanish Agency for Data Protection, regarding the processing of personal data for surveillance purposes through camera or video camera systems states:

“The cameras and video cameras installed in private spaces may not obtain images of public spaces unless it is essential for the intended surveillance purpose, or it is impossible to avoid it due to their location. In any case, any unnecessary data processing for the pursued purpose must be avoided.”

Therefore, the presence of any camera atop a pole, as stated by the claimant in their initial writing, has not been confirmed; the system has the proper signage, and the orientation of the cameras is appropriate for the protection of the premises and adjacent areas, even having the authorization of other property owners who see enhanced security in the area in question.

V

The principle of the presumption of innocence prevents attributing an administrative infringement when no evidence has been obtained and confirmed that substantiates the facts motivating the accusation or the involvement of the alleged infringer in them. Applying the principle “in dubio pro reo” in case of doubt regarding a specific and determined fact, which obliges in any case to resolve such doubt in the most favorable manner for the interested party.

The presumption of innocence must govern without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanctions, as the exercise of the *ius puniendi* in its various manifestations is conditioned on the play of evidence and a contradictory procedure in which one's own positions can be defended. In this sense, the Constitutional Court in its Judgment 76/1990, dated 26/04, considers that the right to the presumption of innocence entails:

“that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof corresponds to the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the result of the evidence presented, freely assessed by the sanctioning body, must translate into an acquittal.”

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The presumption of innocence applies without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanction, whether criminal or administrative (TCo 13/1981), as the exercise of the sanctioning right in any of its manifestations is conditioned by the presentation of evidence and a contradictory procedure in which the parties can defend their own positions.

In accordance with this principle, no sanction can be imposed based on the culpability of the accused if there is no evidentiary activity that, in the assessment of the authorities or bodies called to resolve, destroys this presumption (TCo Auto 3-12-81).

VI

According to the evidence presented, no administrative infringement is proven, therefore the filing of this procedure is proposed.

The parties are reminded of the significance of the rights at stake and should not instrumentalize this body for neighborhood disputes, which should be addressed in the appropriate judicial instances.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the gradation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ORDER the FILING of this procedure as no administrative infringement has been proven in the matter at hand.

SECOND: TO NOTIFY this resolution to B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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